

vested in the corporation or in trustees, is taken by a public company, and the purchase-money is laid out under the direction of the Court in the purchase of other lands upon the like trusts, the deed must be *inrolled* (g).

42. **Loans of charity money on mortgage.**—Trustees of a charity may lend the trust fund upon a *mortgage* of real estate, though a legal condition is expressly reserved, and though after default an equity of redemption arises by the rules of equity. The Statute of Mortmain (9 Geo. 2, c. 36) which avoids conveyances to a charity containing any reservation or condition for the benefit of the grantor, is held not to apply to such a case (h). But of course care should be taken that the mortgage is by indenture attested by two witnesses, and inrolled. The Court itself on one occasion, when its attention had been directed to the question, authorised the trustees of a charity to lend on mortgage(i).

[*542] * 43. 33 & 34 Vict. c. 34. — Now by 33 & 34 Vict.

c. 34, corporations and trustees holding monies in trust for any *public or charitable purpose*, may invest them on any real security authorised by, or consistent with, the trust, and the requirements of the Mortmain Act are dispensed with. But upon foreclosure or release of the equity of redemption, the land is to be held upon trust to be converted into money, and to be sold accordingly.

[44. **Church trustees.**—By the Compulsory Church Rate Abolition Act, 1868, a body of trustees may be appointed in any parish for the purpose of accepting by bequest, donation, contract or otherwise, and of holding any contributions which may be given to them for ecclesiastical purposes in the parish. The trustees are to consist of the incumbent and two householders or owners or occupiers of land in the parish, one to be chosen by the patron and the other by the Bishop of the diocese; and the trustees so appointed are to be a body corporate with perpetual succession and a common seal (a).]

(g) *Re Christ's Hospital*, V. C. Wood, 12 W. R. 669.

(h) *Doe d. Graham v. Hawkins*, 2 Q. B. 212.

(i) *Attorney-General v. Gibson*,

Ex parte Lushington, Re Lady Prior's Charity, July 21, 1853, M. R. The mortgage was for 50,000*l.* upon an estate in Northamptonshire.

[(a) 31 & 32 Vict. c. 109, s. 9.]